

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, June 3, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-03285	Sheila Andrews vs Steven M. Nailen, et al.
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Motion for Summary Judgment

Pursuant to Code of Civil Procedure section 2015.5, Defendant's declaration submitted in support of his motion for summary judgment must be sworn under penalty of perjury.

The declaration of Steven M. Nailen was not made under penalty of perjury. The mandatory remedy is to provide Defendant the opportunity to resubmit his declaration to comply with section 2015.5.

Accordingly, this matter is CONTINUED to June 24, 2026, at 8:15 a.m. in Courtroom 8 for hearing on the motion for summary judgment. Defendant is ordered to resubmit his declaration and serve a copy of Plaintiff, should he wish for it to be considered by this Court in evaluating the merits of the motion for summary judgment, no later than June 17, 2026.

24CV-01683

Gabriel Zamorano Lugo, et al. vs Auto Resources, Inc., et al.

Review of Case Status

Hearing is VACATED; no appearances required. The Court has reviewed the file and found no original application for distribution of interplead funds, despite the filing and receipt of an opposition and reply to the opposition. At the time of the filing of the application, the moving party must request a hearing date for the application. Cross-Defendant, Amber Apodaca, is ordered to re-file the application and request a hearing date, with notice to all parties. The opposition filed by Defendant, Auto Resources, Inc., and reply filed by Cross-Defendant, Amber Apodaca, need not be refiled prior to the hearing date. No further briefing is required, except by any interested party who may not yet have responded to the original application.

Case Management Conference

CONTINUED on the Court's own motion and to allow time for hearing of Cross-Defendant's application for distribution of interplead funds to February 8, 2027, at 10:00 a.m. in Courtroom 8.

25CV-01422

Francisco Pacheco, et al. vs General Motors, LLC

Application to Set Aside Order and Deny Plaintiff's Motion to Compel GM's PMK Deposition Pursuant to CCP Section 473(b)

Defendant's unopposed application to set aside order and deny Plaintiff's motion to compel GM's PMK deposition is GRANTED.

The Court will sign the order lodged with the court on May 1, 2026.

25CV-03336

System

Estate of Donna M. Acheson vs California State Teachers' Retirement

Review of Case Status

Appearance required.

26CV-00361

Petition of: Auriela Alcauter

Order to Show Cause Re: Name Change

Appearance required. Appear to show proof of publication of petition.
